C.C.A. No. E2013-02309-CCA-R9-CD

IN THE COURT OF CRIMINAL APPEALS OF TENNESSEE AT KNOXVILLE

CORRIN K. REYNOLDS,
Appellee,

v.

STATE OF TENNESSEE,
Appellant.

On Appeal from the Judgment of the Knox County Criminal Court
Pursuant to Tenn. R. App. P. 9(a)

BRIEF OF THE APPELLEE CORRIN K. REYNOLDS

ORAL ARGUMENT REQUESTED

MARK STEPHENS
District Public Defender

JIM D. OWEN
Assistant Public Defender
1101 Liberty Street
Knoxville, Tennessee 37919
Telephone: (865) 594-6120
B.P.R. No. 000624
Attorney for Appellee

TABLE OF CONTENTS

Table of Authorities 3

INTRODUCTION 5

ISSUE PRESENTED FOR REVIEW 5

STATEMENT OF ISSUES 5

STATEMENT OF THE CASE 6

STATEMENT OF THE FACTS 6

ARGUMENT 10

I. THE OFFICER LACKED REASONABLE GROUNDS UNDER THE IMPLIED CONSENT STATUTE TO REQUEST A BLOOD DRAW FROM CORRIN REYNOLDS. 10

II. THE STATE FAILED TO PROVE BY A PREPONDERANCE OF EVIDENCE THAT CORRIN REYNOLDS GAVE CONSENT TO DRAW HER BLOOD. 12

III. WAS DEFENDANT/APPELLEE IN A MEDICAL CONDITION RENDERING HER INCAPABLE OF REFUSAL PURSUANT TO THE IMPLIED CONSENT STATUTE T.C.A. § 55-10-406(d)(2), THUS GIVING HER THE RIGHT TO LATER OBJECT TO A BLOOD DRAW TAKEN WHILE INCAPACITATED. . 16

IV. THE MANDATORY BLOOD DRAW PROVISIONS OF T.C.A. § 55-10-406 ARE UNCONSTITUTIONAL. 17

V. IS THE IMPLIED CONSENT STATUTE UNCONSTITUTIONAL? 18

VI. EXIGENT CIRCUMSTANCES? 21

CONCLUSION 22

Certificate of Compliance 24

Certificate of Service 25

TABLE OF AUTHORITIES

Cases

Air Pollution Variance Bd. v. Western Alfalfa Corp., 416 U.S. 861, 865 (U.S. 1974) 21

Dolan v. City of Tigard, 512 U.S. 374, 391 (U.S. 1994) . 18

Frost v. Railroad Commission, 271 U.S. 583, 593-94 (1926) 18, 19

Koontz v. St. Johns River Water Mgmt. Dist., 133 S. Ct. 2586, 2589 (U.S. 2013) 18

Liming v. State, 417 S.W.2d 769 (Tenn. 1967) 16

Mapp v. Ohio, 367 U.S. 643, 655 (U.S. 1961) 20

Marshall v. Barlow's, Inc., 436 U.S. 307, 325 (U.S. 1978) 18, 20

Missouri v. McNeely, 133 S. Ct. 1552 (2013) 17, 18, 20, 22

New York v. Burger, 482 U.S. 691, 703 (U.S. 1987) 21

Nollan v. California Coastal Commission, 483 U.S. 825 (U.S. 1987) 18

State v. Blackwood, 713 S.W.2d 677, 679 (Tenn. Crim. App. 1986) 20

State v. Clark, 844 S.W.2d 597 (Tenn. 1992) 15

State v. Knott, 2001 Tenn. Crim. App. LEXIS 558 16

State v. Mills, 2009 (Tenn. Crim. App. LEXIS 337) 22

State v. Murphy, 953 S.W.2d. 200 (Tenn. 1997) 11

State v. Sides, 2001 Tenn. Crim. App. LEXIS 364 11

U.S. v. Worley, 193 F.3d 380 (C.A. 6th Tenn. 1999) 15

Weem v. State, 2014 Tex. App. LEXIS 5109 (C.A. 4th Dist May 14, 2014) 17

Western Union Tel. Co. v. Foster, 247 U.S. 105 (U.S. 1918) 18

Winston v. Lee, 470 U. S. 753, 760, 105 S. Ct. 1611, 84 L. Ed. 2d 662 (1985) 20

Statutes

Tennessee Code Annotated § 55-10-406 ..... 6, 10, 16, 17, 19, 20, 21

Tennessee Code Annotated § 55-10-407 19

Constitutional Provisions

Tennessee Constitution, Article I, § 7 ..... 19, 20

United States Constitution, Fourth Amendment 18, 19, 20, 21, 22

Rules

Tennessee Rules of Appellate Procedure 9(a) 5

INTRODUCTION

MAY IT PLEASE THE COURT:

This case is an appeal by the State of Tennessee pursuant to Rule 9(a) of the Tennessee Rules of Appellate Procedure from a suppression ruling by the Honorable Steven Sword, Judge of the Criminal Court for Knox County, Division I. Judge Sword held that the blood evidence taken from the defendant should be suppressed and could not be used as evidence against the defendant. The State requested a Rule 9(a) Appeal, which was granted by Judge Sword and this Honorable Court.

ISSUE PRESENTED FOR REVIEW

The trial court correctly suppressed from admission into evidence the blood test of Corrin Reynolds. The trial court found that the officer did not have probable cause to request a blood draw pursuant to the Implied Consent Law, and the evidence in this record does not preponderate against that finding. The trial court also found the State had failed in its burden of proof to establish consent for the blood draw and the evidence in this record does not preponderate against the finding.

STATEMENT OF ISSUES

THE OFFICER LACKED REASONABLE GROUNDS UNDER THE IMPLIED CONSENT STATUTE TO REQUEST A BLOOD DRAW FROM CORRIN REYNOLDS.

THE STATE FAILED TO PROVE BY A PREPONDERANCE OF EVIDENCE THAT CORRIN REYNOLDS GAVE CONSENT TO DRAW HER BLOOD.

WAS THE DEFENDANT/APPELLEE IN A MEDICAL CONDITION RENDERING HER INCAPABLE OF REFUSAL PURSUANT TO THE IMPLIED CONSENT STATUTE T.C.A. § 55-10-406(d)(2), THUS GIVING HER THE RIGHT TO LATER OBJECT TO A BLOOD DRAW TAKEN WHILE INCAPACITATED

THE MANDATORY BLOOD DRAW PROVISIONS OF T.C.A. § 55-10-406 ARE UNCONSTITUTIONAL.

IS THE IMPLIED CONSENT STATUTE UNCONSTITUTIONAL?

EXIGENT CIRCUMSTANCES?

STATEMENT OF THE CASE

The defendant/appellee adopts the statement of the case as presented by the Appellant, State of Tennessee.

STATEMENT OF THE FACTS

Your defendant/appellee was involved in a one(1) car traffic accident on October 29, 2011, at approximately 20:42 hours(8:42 p.m.). The vehicle involved was severely damaged and the defendant was extricated by emergency personnel. The extrication took approximately twenty(20) minutes. Rural Metro Emergency Medical Staff (EMS) arrived at 20:51 and indicated that Ms. Reynolds had suffered a head injury, and that her right pupil was noted blown non-reactive, patient stated she could not see out of her right eye, also screaming that she was deaf and holding a hearing aide in her hand. [Technical Record (T.R.) I, pp. 19-26, EMS Report]. UT Life Star arrived at 20:53 and assumed the care of Ms. Reynolds. The report notes that her consent to be transported

was implied due to her altered mental status. The report indicates that barriers to her care involved a hearing impairment, and that the EMS states that patient was holding her hearing aide, but the Life Star Staff was unable to find it and it was not found in flight. Life Star departed the scene at 21:22 and gave Ms. Reynolds morphine at 21:28 and versed at 21:29. Life Star arrived at the UT Hospital Emergency Room at 21:36. (T.R. I, pp. 27-32, Life Star Report)

The UT Emergency Room staff assumed control of Ms. Reynolds medical treatment at 21:36, and notes indicate that the patient is deaf and unable to hear verbal commands. Morphine was given at 21:45, versed 21:45, versed 21:50, and versed 22:17. Blood was drawn from the defendant at the request of Officer Strzelecki at 22:38. (T.R. I, pp. 33-39, Emergency Room Records)

At 21:04 Officer Strzelecki received a page as a member of a crash reconstruction team with the Knox County Sheriffs Department, concerning the collision. (T. IV, p. 50) As a result of the page he proceeded to the UT Emergency Room and arrived about thirty(30) minutes later. He had not received any information that the accident was caused by alcohol or drugs. He had been told that two(2) people had died in the crash. He testified that because of the deaths the blood draw would have been mandatory. (T. II, pp. 2-3) He also testified that upon arriving at the emergency room he had a meeting with Ms. Reynolds at approximately fifteen (15) minutes prior to the blood draw, which would have been around 22:23. At the time of his conversation Ms. Reynolds had received six (6) doses of medication: morphine 21:28, versed 21:29, morphine 21:45, versed 21:45, versed 21:50 and versed 22:17. (T. IV, p. 52) Officer

Strzelecki testified on two(2) different occasions as to the meeting with Ms. Reynolds, first at a hearing on April 5, 2013 (T. II), and second on August 30, 2013 (T. IV). His testimony differed on these two(2) occasions, and the trial court adopted and gave credit to his testimony at the last hearing on August 30, 2013. At this hearing Officer Strzelecki indicated that he asked Ms. Reynolds for a blood draw and she acknowledged, "do whatever you have to do." He was unable to recall any further conversation with her other than that one (1) statement. (T. IV, p. 46) Officer Strzelecki testified he did not know Ms. Reynolds was hearing impaired (T. IV, p. 46). He also said he did not read her the Implied Consent form, and advise her that she could refuse the request. (T. II, p. 15)

As part of the record counsel for Ms. Reynolds filed reports from Dr. Grady Arnold, a hearing specialist, whose records indicated that on August 25, 2010, and September 14, 2012, he saw and examined Ms. Reynolds for possible hearing impairment. Audiograms were performed and these showed that Ms. Reynolds does suffer a bilateral moderately severe to profound sensorineural hearing loss. His recommendation was the use of hearing aids. (T.R. I, pp 69-75)

Dr. John B. Robertson testified at the August 30, 2013, suppression hearing, that the medications given to Ms. Reynolds as set out above were heavy doses of medications and were cumulative, and would have in his opinion, caused Ms. Reynolds to be incapable of giving an intelligent and knowing consent to a blood draw. (T. IV, pp. 40-41)

> Q: Doctor, based on your review of these medical records and your knowledge of these medications, are you of the opinion that at any time during from the time of the accident until the blood was actually drawn, that Ms. Reynolds would have

been capable to give a voluntary, knowing, and intelligent and informed consent to have her blood drawn?

A: I don't think she could have.

Q: And could you tell the Court why?

A: Well, first you've got the head injury even before she has any medication, and then to the extent that she is no longer dazed and confused by such a traumatic physical injuries and loss of consciousness related to the head injury. Then she's got the psychological trauma of looking around and seeing people, bodies, dead and all the ambulance and the Life Star coming in picking her up. So you got all of this psychological trauma compounded on top of that, and then on the way, you've got these medications within minutes of getting—as soon as they can get an IV in, they're giving her something, and so they get the IV in, they give her some medicine to calm her down, to control the pain, and then she hits the ER, and then she's not calm enough. So—she's combative, and so they've got to give her some more medication to calm her down, and each of these times they're not giving it for the heck of it, but she's getting —levels of agitation starting to go back up. The medicine's not wearing off. It's just that she requires quite a bit of medication here, and this is—this is enough to put someone down. (T. IV, pp. 18-19)

Dr. Robertson also testified the medications given to Ms. Reynolds were "heavy doses" and cumulative over time. (T. IV, pp. 40-41) He describes the use of morphine for pain relief and versed (midazolam), to calm the patient, make her compliant and to cause amnesia. (T. IV, p. 17, p. 37) He further testified on cross-examination that:

A: A person that received the degree of midazolam (versed) and morphine over the course of an hour should not be able to give informed consent. They would be complying ... you could ask them to do anything, and they would do it. Their judgment and reasoning, their heart, cardio functioning is just they're offline. (T. IV, p. 38)

Q: Is there a difference between being rational and being complaint?

A: Yes

Q: Compliant means to submit to a command?

A: Yes

Q: Now; the officer testified that he did speak with her, asked for a blood draw, and her response was "do whatever you have to do." The State said she agreed to a blood draw, but does that language "do whatever you have to do" does that indicate to you that she's being complaint and not rational?

A: Yes (T. IV, pp. 39-40)

ARGUMENT

Because the evidence in this record does not preponderate against the findings of the Honorable Steven W. Sword, this Honorable Court should uphold his ruling to suppress the blood evidence in this case.

I. THE OFFICER LACKED REASONABLE GROUNDS UNDER THE IMPLIED CONSENT STATUTE TO REQUEST A BLOOD DRAW FROM CORRIN REYNOLDS.

As Judge Sword states in his finding of facts and conclusions of law filed September 4, 2013, (T.R. I, pp. 91-99), the implied consent statute, T.C.A. § 55-10-406, requires an officer to possess reasonable grounds (i.e. probable cause citations on p. 94), before request for a blood draw can be made.

The trial judge ruled that Officer Strzelecki, lacked probable cause to request a blood sample under the implied consent law. The trail judge relied on these facts:

1. Officer Strzelecki only observed the defendant for a few minutes in the emergency room. (T.R. I, p. 95)

2. No evidence was presented to indicate that the nature of the accident gave him reason to believe the driver was under the influence. (T.R. I, p. 95)

3. The defendant was lying on a gurney when the officer spoke with her. He was unable to determine if she was unsteady on her feet. (T.R. I, p. 95)

4. He performed a horizontal gaze nystagmus test on the defendant, which indicated to him that she was impaired. No other field sobriety tests were performed. (T.R. I, p. 95) [Note: that defense counsel objected to the evidence of the nystagmus test relying on *State v. Murphy*, 953 S.W.2d. 200, (Tenn. 1997), which requires the officer to qualify as an expert capable of explaining the science underlying the test. Counsel would argue the Trial Judge should not have considered the officer's testimony concerning his conclusions from the test. The officer testified he could not explain the science. (T. II, p. 60) Also, the officer testified the nystagmus could be the result of medications given to her by medical staff (T. II, pp. 7-8)]

5. The officer did notice an odor of alcohol on the defendant. He did not testify whether or not her eyes were bloodshot or if her speech was slurred. (T.R. I, p. 95) [Note: Smell of alcohol has been held insufficient to establish probable cause. *State v Sides*, 2001 Tenn. Crim. App. LEXIS 364]

6. On his way to the hospital Officer Strzelecki called the Assistant District Attorney to discuss the situation before he arrived at the hospital.

She instructed him to ask the driver for consent to take a blood sample. This occurred before the officer ever observed the defendant. (T.R. I, p. 95)

7. He testified during the first hearing that he spoke with the passenger and asked for consent to take a blood sample from him before he spoke to the defendant. (T.R. I, p. 95).

8. The officer testified that since there were fatalities the blood draw "would have been mandatory under our investigation". (T., p. 95)

9. If the State believed the officer had probable cause, it is likely she would have been charged much sooner than waiting for a toxicology report. (T., p. 95)

10. As stated in the previous ruling, the Court finds the officer's intent was to receive actual consent for a blood draw from the defendant rather than relying on implied consent. The circumstances of this case indicate that the officer did not have reasonable grounds to believe the defendant was driving under the influence. Therefore, the State cannot rely on implied consent to justify the search and seizure of the defendant's blood. (T.R. I, pp. 95-96)

The trial judge correctly applied the law to these facts, which are not overcome by a preponderance of evidence, and therefore, his ruling should legally stand.

II. THE STATE FAILED TO PROVE BY A PREPONDERANCE OF EVIDENCE THAT CORRIN REYNOLDS GAVE CONSENT TO DRAW HER BLOOD.

The trial court correctly states the law in regards to consent. The State has the burden by showing by a preponderance of the evidence that the consent was freely and voluntarily given and must be unequivocal,

specific, intelligently given, and uncontaminated by duress or coercion. (T.R. I, p. 96)

The trial court held the State failed in its burden and this finding is not shown to be against the preponderance of evidence in this case, and therefore the holding should stand.

The facts found by the Court to support this conclusion are as follows:

1. Officer Strzelecki testified during both hearings that he asked the defendant if she would consent to give a blood sample, and that she gave consent with the statement "do whatever you have to do." (T.R. I, p. 96)

2. The Court must determine from the evidence presented if the defendant was conscious of what was being asked of her, and gave an intelligent consent to the specific act of having her blood drawn for the purpose of testing her alcohol and/or blood levels. (T.R. I, p. 96)

3. The defendant did present testimony of Dr. Robertson. His testimony is useful for the limited purpose of establishing that the medications administered to the defendant [morphine and midzaolam (versed)] are designed to have a calming effect on the patient and make them more compliant. The medical records indicate that the defendant had been combative before the medication, and subsequently calmed down and appeared to be sleeping. It is reasonable from these facts to conclude that the medication was having some effect on the defendant. However, it is not clear to what extent the medications affected her free will and conscious thought. (T.R. I, p. 97)

4. There was a material difference between the officer's testimony between the first and second suppression hearings. (T.R. I, p. 97)

This second description of the interaction between Officer Strzelecki and the defendant paints a different picture than the one initially presented to the Court at the first hearing. The Court previously believed that the defendant had a verbal interchange with the officer where she verbally answered multiple questions. The added responses from the defendant concerning the consumption of alcohol, and who was driving gave the phrase, "do whatever you have to do", more credence as an intelligent and knowing response to the request for blood. When asked about what was specifically said by the defendant, the officer (during the 2nd hearing) acknowledged that the defendant only spoke one (1) sentence during the entire brief conversation. The mere fact that the defendant nonverbally acknowledge that she was the driver gives the Court much less confidence that she understood what was being asked of her when a blood sample was requested. (T.R. I, p. 98)

5. The officer did not explain to the defendant that she could refuse to consent to the blood draw. Nor did he advise her that refusal to submit could result in a suspension of her driver's license although, not required by law in order for the consent to be valid, such advice would have gone a long way in ensuring that the consent was given from a free mind and rational intellect in this case. (T.R. I, p. 98)

6. The more specific questions asked by the Court during the second hearing, along with the additional proof from Dr. Robertson, present a more complete understanding of his interaction with the defendant and her ability to comprehend this interaction. (T.R. I, p. 98)

7. Here we have a defendant in a hospital after a severe car accident. She has been given multiple doses of medications to calm her

down and make her more compliant with demands and requests. She has some degree of hearing impairment that interferes with her ability to communicate. She has a brief interaction with a police officer who asks her to follow his pen with her eyes during the horizontal nystagmus test. He then asks her if she was the driver. She gives a nonverbal cue indicating in the affirmative. The officer asks her for a sample of her blood, which she responds, "do whatever you have to do." Taking all those factors into account the Court now finds that the State has failed to prove by a preponderance of the evidence that this statement was a specific and intelligently given consent to have law enforcement take a sample of her blood for testing to determine possible impairment. (T.R. I, p. 99)

8. It is just as likely that the defendant was complying with any request made of her due to the medication. (T.R. I, p. 99)

9. Her one (1) sentence response of acquiescence is insufficient to prove she was specifically consenting to a search of her blood.

The evidence does not preponderate against the Court's ruling and thus the ruling should be upheld. In *U.S. v. Worley*, 193 F.3d 380 (C.A. 6th Tenn. 1999), during a police/citizen encounter the defendant was asked if officer could look into a bag and defendant responded "you've got the badge, I guess you can", was held not to be valid consent. In *State v. Clark*, 844 S.W.2d 597 (Tenn. 1992) our Supreme Court held:

> Nor has the State satisfied its burden of proving that Mr. Clark freely and voluntarily consented to the detective's entry. When Mr. Clark answered the door the detectives merely identified themselves and entered the apartment. Contrary to the State's ascension, Mr. Clark's action in stepping back from the door was not an invitation for the officers to enter. Consent to enter and search a home will not be lightly interred, nor found by mere acquiescence to unlawful authority. (p. 598)

And in *Liming v. State*, 417 S.W.2d 769 (Tenn. 1967), an officer declared his intent to search the car of the defendant to which the defendant replied, "there it is." The Court states that "in order for consent to be voluntary it must be unequivocal, specific, and intelligently given and is not likely to be inferred" (p. 771), and held the consent invalid.

Finally, in *State v. Knott*, 2001 Tenn. Crim. App. LEXIS 558, an officer ask to search the defendant's car and after being told that the officer would call for a K-9 the defendant consented. The consent was held involuntary and the Court in reviewing factors to consider in evaluating voluntariness of the consent specifically considers:

- Defendant's awareness of right to refuse
- Defendant's age, education, and intelligence
- Whether defendant understands her constitutional rights
- Previous experience with police
- Whether the accused was injured, intoxicated or in ill health

Clearly these weigh in favor of Judge Sword's ruling.

Therefore, it is respectfully submitted that the evidence in this case does not preponderate against Judge Sword's conclusion that the State failed to carry it's burden of proof to establish valid consent.

III. WAS DEFENDANT/APPELLEE IN A MEDICAL CONDITION RENDERING HER INCAPABLE OF REFUSAL PURSUANT TO THE IMPLIED CONSENT STATUTE T.C.A. § 55-10-406(d)(2), THUS GIVING HER THE RIGHT TO LATER OBJECT TO A BLOOD DRAW TAKEN WHILE INCAPACITATED.

If this Honorable Court should find the Trial Court was incorrect in holding the officer lacked reasonable grounds to request a blood draw, (which is certainly not conceded by defense counsel) defendant would

argue that T.C.A. § 55-10-406(d)(2) should still cause the blood evidence to be suppressed.

> Any person who is unconscious as a result of an accident or is otherwise in a condition rendering that person incapable of refusal, shall be subjected to the test or tests as provided in this section. The results therefore shall not be used in evidence against that person in any court or before any regulatory body without the consent of the person so tested. T.C.A. § 55-10-406(d)(2)

As previously set forth in Argument II, defendant contends the Trail Court correctly found the defendant was incapable of legal consent, and it would therefore stand to reason that she would be incapable of legal refusal under this code section. It is clear the defendant was in a condition rendering her incapable of knowingly, voluntarily, and intelligently giving refusal due to her severe injuries, medications, and hearing impairment. Defense would argue if she is incapable of legal consent then she is incapable of legal refusal.

IV. THE MANDATORY BLOOD DRAW PROVISIONS OF T.C.A. § 55-10-406 ARE UNCONSTITUTIONAL.

The mandatory blood draw provisions found in T.C.A. § 55-10-406(d)(5) are deemed unconstitutional in the U.S. Supreme Court case of *Missouri v. McNeely*, 133 S. Ct. 1552 (2013). In the State's brief it is argued that the mandatory blood draw provisions are a legal basis for the blood test in this case. However, that argument was abandoned by the State at trial level based on the rendering of *McNeely*. The trial judge was not presented with this argument, and thus made no ruling. Defense believes *McNeely* invalidates the State's position.

In *Weem v. State*, 2014 Tex. App. LEXIS 5109 (C.A. 4th Dist May 14, 2014), the Court reviewed the Texas implied consent statute in light of the

McNeely decision and held "that the implied consent and mandatory blood draw statutory scheme found in the Texas code are not exceptions to the warrant requirement under the Fourth Amendment. To be authorized, the State's warrantless blood draw must be based on a well-recognized exception to the Fourth Amendment." (p.6)

At the trial level in the case now before this Court the State conceded the mandatory blood draw provisions to be invalid and proceeded on a theory that the defendant gave consent, which is an exception to the warrant requirement of the Fourth Amendment. The State now argues contra to it's prior position.

V. IS THE IMPLIED CONSENT STATUTE UNCONSTITUTIONAL?

Whether Tennessee's Implied Consent Law violates the Constitution because it imposes an unconstitutional condition by requiring drivers to submit to warrantless searches and seizures.

The Supreme Court has a long history of prohibiting States from conditioning the grant of a privilege on the relinquishment of a constitutional right. *See Koontz v. St. Johns River Water Mgmt. Dist.*, 133 S. Ct. 2586, 2589 (U.S. 2013); *Dolan v. City of Tigard*, 512 U.S. 374, 391 (U.S. 1994); *Nollan v. California Coastal Commission*, 483 U.S. 825 (U.S. 1987); *Marshall v. Barlow's, Inc.*, 436 U.S. 307, 325 (U.S. 1978); *Frost v. Railroad Commission*, 271 U.S. 583, 593-94 (1926); *Western Union Tel. Co. v. Foster*, 247 U.S. 105 (U.S. 1918). This constitutional conditions doctrine states that:

> As a general rule, the state, having power to deny a privilege altogether, may grant it upon such conditions as it sees fit to impose. But the power of the state in that respect is not unlimited, and one of the limitations is that it may

> not impose conditions which require the relinquishment of constitutional rights. If the state may compel the surrender of one constitutional right as a condition in its favor, it may, in like manner, compel a surrender of all. It is inconceivable that guaranties embedded in the Constitution of the United States may thus be manipulated out of existence. *Frost v. Railroad Commission*, 271 U.S. 583, 593-94 (1926).

In *Frost* the Supreme Court declared a law unconstitutional that imposed conditions on the use of California's public highways for private business. *Id.* It is important to note that this doctrine encompasses the "guaranties embedded in the Constitution", which includes the Fourth Amendment's protection against unreasonable searches and seizures. *Id*; U.S. Const. amend. IV.

In Tennessee the Implied Consent Statute declares that, "any person who drives a motor vehicle in this state is deemed to have given consent to a test or tests for the purpose of determining the alcoholic content of that person's blood." T.C.A. § 55-10-406. It further provides that this test may only be conducted if an officer has "reasonable grounds to believe the person was driving while under the influence of [an intoxicant]." *Id.* When a person refuses to consent to a request for a blood draw that person is subject to suspension for up to five (5) years. T.C.A. § 55-10-407.

The United States and Tennessee Constitutions protect against unreasonable searches and seizures. U.S. Const. Amend. IV; Tenn. Const. Art. I, § 7. The U.S. constitution declares that "the right of the people to be secure ... against unreasonable searches and seizures, shall not be violated, and no warrants shall issue, but upon probable cause." U.S. Const. Amend. IV. The Tennessee Constitution provides that "people shall

be secure in their persons, houses, and papers and possessions, from unreasonable searches and seizures." Tenn. Const. Art. I, § 7. Further, the Fourth Amendment protections apply in State Court proceedings. *Mapp v. Ohio*, 367 U.S. 643, 655 (U.S. 1961).

Taking a sample of a person's blood constitutes a search under the Fourth Amendment. *Missouri v. McNeely*, 133 S.Ct. 1552, 1558 (U.S. 2013); *State v. Blackwood*, 713 S.W.2d 677, 679 (Tenn. Crim. App. 1986). Indeed, "such an invasion of bodily integrity implicates an individual's 'most personal and deep-rooted expectations of privacy'" *Id.* (Quoting *Winston v. Lee*, 470 U. S. 753, 760, 105 S. Ct. 1611, 84 L. Ed. 2d 662 (1985)).

In *Missouri v. McNeely*, the Supreme Court has shown that the Fourth Amendment protects drivers from blood samples being taken without the authority of a neutral magistrate, unless it is unreasonable to obtain a warrant under the circumstances. *Id.* Therefore, the court rejected a rule that would permit warrantless blood draws in all drunk driving investigations under the exigent circumstances doctrine. *Id* at 1568. A citizen involved under investigation for driving while intoxicated is protected by the Fourth Amendment against unreasonable searches. *See Id.* In contravention of this principle the State of Tennessee currently requires all drivers to consent to a warrantless blood draw in order to drive in Tennessee. T.C.A. § 55-10-406.

The Supreme Court has invalidated a state statute that required businesses to permit inspections for violations of the Occupational Safety and Health Act (OSHA). *Compare Marshall v. Barlow's, Inc.*, 436 U.S. 307, 325 (U.S. 1978) (holding that a statute was unconstitutional where

it permitted the government to search businesses without a warrant) with *New York v. Burger*, 482 U.S. 691, 703 (U.S. 1987) (holding that a New York statute that required junk yards to submit to warrantless inspections was valid where the searches themselves fit within the closely regulated businesses exception to the warrant requirement) and *Air Pollution Variance Bd. v. Western Alfalfa Corp.*, 416 U.S. 861, 865 (U.S. 1974) (holding that a Colorado statute permitting warrantless pollution analysis of the plume from a smoke stack was valid where the search fell with within the open fields exception to the warrant requirement).

The Implied Consent Law forces a citizen to forfeit the Fourth Amendment protections of requiring an officer to obtain a warrant or face suspension of a license. T.C.A. § 55-10-406. Therefore this manner of presenting the request for a blood sample is unlawful. Implied consent is not a legal exception for a warrantless search.

VI. EXIGENT CIRCUMSTANCES?

The State argues the blood draw if suppressed for all other reasons should be admitted under the "exigent circumstances" exception to a search warrant. This position was not argued in the trial court. Judge Sword was not presented the issue with facts or law. Knox County has twenty-four (24) hour access to obtain a search warrant. Magistrates are available twenty-four (24) hours per day seven (7) days per week. Prosecuting attorneys are on call. A search warrant can be sought within a matter of minutes. Officer Strzelecki was not the only officer involved in this investigation. Officers were at the crash site within minutes, and a prosecuting attorney was available, and in contact with those charged with the investigation. The State has the burden of proof

yet nothing was offered at the trial level, and no argument legally advanced. Law enforcement cannot create its own exigent circumstances in order to circumvent the warrant requirement. *State v. Mills*, 2009 (Tenn. Crim. App. LEXIS 337) Whether a warrantless blood draw test is reasonable must be determined case by case based on the totality of the circumstances. *McNeely*, 133 S.Ct. 1563. This is an issue that should have been raised and litigated in the trial court, but was not. In *McNeely* the Court held the fact that alcohol dissipates over time in the human body does not alone constitute exigent circumstances justifying taking a blood sample without a warrant. The Court held in drunk driving investigations when officers can reasonably obtain a warrant for a blood draw the Fourth Amendment mandates they do so. (133 S.Ct. 1552, 1561, U.S. 2013)

In this case there were multiple officers involved in the investigation and a search warrant could easily have been obtained upon a showing of probable cause. The burden is on the State to prove by a preponderance of evidence that exigent circumstances existed, but failed to offer any proof or argument on this issue at the trial level.

CONCLUSION

Defendant/Appellee respectfully requests that this Honorable Court uphold the suppression of the blood test to be offered by the State in this prosecution.

Respectfully submitted,

/s/ JIM D. OWEN
JIM D. OWEN
BPR# 000624
ASSISTANT DISTRICT PUBLIC DEFENDER
1101 Liberty Street
Knoxville, TN 37919
Phone: (865) 594-6120
(This signature was electronically generated pursuant to Tenn. Code Ann. § 16-1-115.)

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the word limit of Tenn. R. App. P. 30(e) and contains 4933 words, excluding the parts of the brief exempt under that rule. The count was made from the text of the brief as filed.

/s/ JIM D. OWEN
JIM D. OWEN
BPR# 000624
ASSISTANT DISTRICT PUBLIC DEFENDER
1101 Liberty Street
Knoxville, TN 37919
Phone: (865) 594-6120
(This signature was electronically generated pursuant to Tenn. Code Ann. § 16-1-115.)

CERTIFICATE OF SERVICE

I, Jim D. Owen, hereby certify that a true and exact copy of the foregoing has been forwarded by first-class mail, postage prepaid, to the State Attorney General's Office, Criminal Justice Division, P.O. Box 20207, Nashville, Tennessee 37202, this the 3rd day of June, 2014.

3rd day of June, 2014
/s/ Jim D. Owen
Jim D. Owen